Revision Date:
August 1, 2018

Background:
CalWORKs recipients, whose eligibility ends because their children were removed from the home by Child Welfare Services (CWS), may continue to participate in Welfare-to-Work (WTW) activities, and receive supportive services, if the CWS Social Worker or Juvenile Court deem services necessary to reunify the family.

Purpose:
The purpose of this revision is to notify staff that Family Reunification (FR) families may receive Temporary Homeless Assistance (THA) benefits, if otherwise eligible, if the county determines that THA is necessary for reunification to occur.

Policy:
The CWS Social Worker, or the court, may authorize FR services for up to 180 days from the date the children are removed from the assistance unit (AU). The court may also grant the parent a good cause extension to the 180-day period.

Eligibility to FR Services
To receive FR services, all of the following conditions must be met:

- A CWS Social Worker, or the court, have determined that the provision of FR services is necessary for family reunification
- The child(ren) have been removed from the home and placed in out-of-home care
- The AU had been receiving CalWORKs when the child(ren) was/were removed
  Note: SSI recipients, undocumented noncitizens, or timed-out parents are ineligible to FR services because they were not eligible to receive CalWORKs benefits

When there are multiple children in the AU, but not all the children are removed, and the AU becomes ineligible to CalWORKs due to income, the parent(s) may be eligible to FR services if there is a court-ordered reunification plan for the child(ren) who were removed.

THA
Effective January 1, 2018, FR cases that are experiencing homelessness may be eligible for THA benefits, if the county determines these benefits are necessary for reunification and the family is otherwise eligible.

Since THA only covers 16 days of temporary shelter assistance, staff should connect families to any additional housing interventions available including, but not limited to, Family Stabilization (FS) and the Housing Support Program (HSP) for further assistance. Additionally, once the children are returned to the home and are added back into the AU, the family may be eligible for Permanent HA, if otherwise eligible.

WTW
The court ordered reunification plan will be used to develop the WTW plan. Individuals who fail to participate in WTW activities or any other activities required under the FR plan are not subject to the WTW noncompliance or sanctioning process. WTW services will continue to be provided until the FR plan is terminated by the CWS Social Worker.

Aid Codes
Family Reunification cases will be identified under aid codes 4P or 4R.

- 4P aid code (All Families): Provides for continuance of FR services (no cash aid) to all families except two-parent families.
- 4R aid code (Two Parent Households): Provides for continuance of FR services (no cash aid) to two-parent families.

Eligibility for Medi-Cal
FR parents are ineligible to cash-linked Medi-Cal through CalWORKs; therefore, an evaluation for Medi-Cal must be completed.

Eligibility for CalFresh
FR households do not receive a cash grant therefore FR families are eligible for Transitional CalFresh benefits (TCF) in the month in which CalWORKs benefits are reduced to zero when FR services begin.

Periodic Report
Reunification families are not required to submit a periodic report for CalWORKs.

Redetermination
Redetermination of eligibility will be made at six-month intervals in coordination with the Juvenile Court's review of the family reunification plan. If they are determined eligible, the existing certification period will be changed to align with the reunification plan.

When a family is reunified, a CalWORKs redetermination must be completed to reopen the CalWORKs case. Once a redetermination is completed, if they are eligible, CalWORKs benefits will be issued effective the first of the following month after the family is reunified.

Procedure:
CPG Processing Guide 40-183.D.1

Program Impacts:
Automation
BEnDS 1443

Forms and Document Capture
All manual forms and notices must be imaged in to CERMS.

References:
Assembly Bill (AB) Nos. 429 and 236
EAS 42-7111.512, 80-301.3, 82-812.678; ACIN No. I-49-04; ACL Nos. 02-36, 03-52, 11-04, 16-98, and18-71

Sunset Date:
This policy will be reviewed for continuance on or by August 31, 2021.

Approval for Release:



Rick Wanne, Director
Eligibility Operations